

23STCV31516 23STCV31516

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Case Number: 23STCV31516 Hearing Date: September 17, 2026 Dept: 514

Hart v. Shakes

23STCV31516

Plaintiffs' Motion for Summary Adjudication

Tentative Ruling

The Court will call this matter.

To the extent that the parties wish to have the Court consider video or audio evidence that has been served and lodged with the Court through thumb drives or other external devices, the parties must be prepared to display the evidence to the Court at the hearing. (The Court will not plug in external devices to court computers.)

The Court posts this partial tentative ruling

based on its review of the written evidence and argument.

Based on the written

evidence and argument, the Court's tentative ruling is that there appears to be

a triable issue of fact as to whether Plaintiffs performed all of their

obligations under the NDA signed by the parties in October 2020, including the

obligation of Plaintiffs to provide health insurance to Defendant for 36

months. (See Shakes Decl., at p. 7:11-16

& Exh. 23.)

Background

This case involves a dispute arising out the employment relationship. According to the pleading, Defendant Miesha

Shakes (“Defendant” or “Shakes”) was employed as a personal assistant for Plaintiff

Kevin Hart (“Hart”) from approximately August 2017 through October 2020.

On December 26, 2023, Plaintiffs Hart and K. Hart

Enterprises, Inc. (“KHE”) filed the complaint in this action against Shakes,

Latasha Transrina Kebe (“Kebe”), Kebe Studios, LLC, and Does 1 through 20.

On January 2, 2024, Plaintiffs Hart and KHE (collectively,

“Plaintiffs”) filed a First Amended Complaint (the “FAC”) against the same

defendants plus Yelen Entertainment LLC (“Yelen”). In the FAC, Plaintiffs assert causes of action

for: (1) civil extortion; (2) breach of contract; (3) intentional interference

with contractual relations; (4) invasion of privacy (public disclosure of

private facts); and (5) defamation.

On February 5, February 8, and March 4, 2024, Defendants

Yelen, Shakes, and Kebe each filed an answer to the FAC. Shakes filed an amended answer on July 2,

2024.

On April 24, 2024, the Court granted in part and denied

in part the special motion to strike (anti-SLAPP) filed by Defendants Yelen and

Kebe. The motion was granted as to

Plaintiffs’ first cause of action for civil extortion, KHE’s fourth cause of

action for invasion of privacy, and KHE's fifth cause of action for defamation.

On November 14, 2024, the Court granted in part and

denied in part the special motion to strike (anti-SLAPP) filed by Defendant

Shakes. The motion was granted as to

Plaintiffs' first cause of action for civil extortion, KHE's fourth cause of

action for invasion of privacy, and KHE's fifth cause of action for defamation.

On June

17, 2026, Plaintiffs filed this motion for summary adjudication of the Second

Cause of Action against Defendant Shakes.

Defendant

filed an opposition on August 4.

On August

28, Plaintiffs filed a reply, along with objections to some of Defendant's

evidence and a reply declaration of Plaintiff Hart.

Defendant

filed a supplemental declaration, along with a request for leave to file new

evidence and responses to Plaintiffs' objections, on September 1.

The hearing

was initially scheduled for September 9 and was continued by the Court to

September 17.

Trial is set for October 12, 2026.

Legal Standard

“The purpose of the law of summary

judgment is to provide courts with a mechanism to cut through the parties’

pleadings in order to determine whether, despite their allegations, trial is in

fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision

(c), “requires the trial judge to grant summary judgment if all the evidence

submitted, and ‘all inferences reasonably deducible from the evidence’ and

uncontradicted by other inferences or evidence, show that there is no triable

issue as to any material fact and that the moving party is entitled to judgment

as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7

Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary

judgment is to delimit the scope of the issues; the function of the affidavits

or declarations is to disclose whether there is any triable issue of fact

within the issues delimited by the pleadings.” (Juge v. County of Sacramento

(1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima

(1991) 231 Cal.App.3d 367, 381-382.)

As to each cause of action as framed by

the complaint, a defendant moving for summary judgment or summary adjudication

must satisfy the initial burden of proof by presenting facts to show “that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, supra, 25 Cal.4th at pp. 850-851; Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Aguilar, supra, 25 Cal.4th at pp. 850-851.)

A plaintiff or cross-complainant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to prove “each element of the cause of action entitling the party to judgment and must also show “that there is no defense to [the] cause of action.” (Code Civ. Proc., § 437c, subd. (p)(1).) Once the plaintiff or cross-complainant has met that burden, the burden shift to the defendant or cross-defendant to show that a “triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

The party opposing a motion for summary judgment or summary adjudication may not simply “rely upon the allegations or denials of its pleadings” but must instead “set forth the specific facts

showing that a triable issue of material fact exists.” (Code Civ. Proc., § 437c, subds. (p)(1) & (p)(2). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts

“liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Judicial

Notice

Plaintiffs ask the

Court to take judicial notice of the declaration of Defendant Kebe filed in support of her special motion to strike.

The Court takes judicial notice of the filing of the declaration but not the truth of the matters stated therein.

Objections to

Evidence

Plaintiffs assert 73

objections to Defendant’s declaration.

The Court SUSTAINS

Objection No. 17 (speculation and improper legal argument), Objections Nos.

24-33 (secondary evidence), Objections Nos. 34, 53, and 66 (improper legal

argument). The other objections are

overruled.

The Court

disregards the declaration submitted by Plaintiff Hart with Plaintiffs' reply. (Code Civ. Proc., § 437c, subd. (b)(4).)

Discussion

Plaintiff Hart is a

comedian, actor, and entrepreneur and the Chief Executive Officer of Plaintiff

KHE. (Plaintiffs' Statement of Undisputed

Material Facts ["PSUMF"], No. 1.)

Defendant Shakes was an employee of Heartbeat Productions LLC ("Heartbeat"),

a predecessor of KHE, and was employed in various capacities, including as Plaintiff

Hart's personal executive assistant.

(PSUMF, No. 2.)

Plaintiffs assert that when

Shakes became employed by Heartbeat in 2017, she entered into a Confidentiality

Agreement dated August 8, 2017 (the "2017 Confidentiality Agreement"). (Hart Decl., ¶ 5 & Exh. A.) Plaintiffs have presented a version of the

Confidentiality Agreement signed by Defendant.

(Hart Decl., Exh. A.) Defendant denies

signed the Confidentiality Agreement.

(Shakes Decl., at p. 2.)

Defendant presents an email

from January 28, 2020, referring to a “new Confidentiality and Proprietary

Rights Document.” (Shakes Decl., at p. 2

& Exh. 2.) There is no evidence in

the record that the parties finalized and signed an updated confidentiality agreement

at that time (or thereafter).

The 2017 Confidentiality

Agreement broadly defines the terms “Confidential Information” and “Protected

Parties.” (PSUMF, Nos. 7-8.)

Defendant Shakes left her

employment with Plaintiffs in 2020.

Plaintiffs assert that her employment ended on or about October 22, 2020. (Hart Decl., ¶ 6.) Shakes asserts that her employment ended

earlier, in July 2020. (Shakes Decl., at

pp. 3-4.)

On or about October 22,

2020, Shakes and Hart entered into a Mutual Release and Non-Disclosure

Agreement (the “NDA”). (Hart Decl., ¶ 6

& Exh. B.) Shakes does not deny

signing the NDA but states that she did so under duress and coercion. (Shakes Decl., at pp. 5-6 and cited exhibits.)

The NDA requires Plaintiffs

to provide certain consideration to Defendant, including a severance payment of

\$30,000 and health insurance coverage for 36 months. (PSUMF, No. 10; Hart Decl., Exh. B, at p.

1.)

Hart states in his

declaration that all the consideration required by the NDA was provided to

Shakes. (Hart Decl., ¶ 6.) Shakes states in her declaration that the

health insurance coverage provided by Plaintiffs was cancelled on March 8,

2021. (Shakes Decl., at p. 7:11-16 &

Exh. 23.)

Plaintiffs assert that in

or about November 2023, Shakes participated in an interview in which she

disclosed information about Plaintiffs in violation of the NDA and that Hart

suffered injury as a result. (Hart

Decl., ¶¶ 7-9.)

Plaintiffs now move for summary

adjudication of the Second Cause of Action for breach of contract. Plaintiffs argue that there are no issues of

material fact and that they are entitled to judgment as a matter of law on this cause of action.

The elements of a cause of

action for breach of contract are: "(1) the existence of the contract, (2)

plaintiff's performance or excuse for nonperformance, (3) defendant's breach,

and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v.

Goldman (2011) 51 Cal.4th 811, 821; see also, e.g., Richman v. Hartley (2014)

224 Cal.App.4th 1182, 1186.)

Here, Plaintiffs argue that

the NDA is an enforceable contract between the parties, that Plaintiffs performed

their obligations under the NDA, that Defendant breached the NDA, and that Plaintiffs

have been damaged by Defendant's breach.

On this record, however, it

appears that Defendant has presented evidence sufficient to raise a triable issue

of fact as to whether Plaintiffs performed all of their obligations under the

NDA, including the obligation to provide health insurance to Defendant for 36

months. (Shakes Decl., at p. 7:11-16

& Exh. 23.)

Conclusion

The Court will call this

matter.